

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No:
Date Filed:

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RONALD RIVAS,

Plaintiff,

Plaintiff designates
KINGS COUNTY
as the place of trial

-against-

The basis of the venue is:
Place where the cause of
action arose

SUMMONS

POLICE OFFICER KENYATTA BROWN
(Shield # 20409; Tax #: 933657), POLICE OFFICER
KRUNAL PANDHI (Shield # 30175 Tax #: 954208) and
POLICE OFFICER GERALD DIAZ (Shield # 3067;
Tax # 949858),

The plaintiff resides at:
Kings County, New York

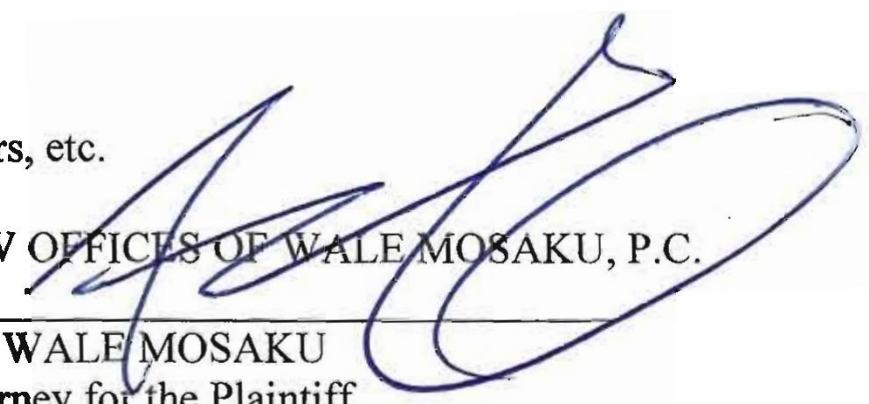
Defendants.
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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
November 14, 2018

Yours, etc.


LAW OFFICES OF WALE MOSAKU, P.C.

BY: WALE MOSAKU
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

Police Officer Kenyatta Brown
New York City Police Department
Transit District 33
2399 Fulton Street
Brooklyn, NY 11233

Police Officer Krunal Pandhi
New York City Police Department
Medical Division
69-17 Junction Boulevard, 16th Floor
Queens, NY 11368

Police Officer Gerald Diaz
New York City Police Department
Police Service Area (PSA) 6
2770 Frederick Douglass Boulevard,
New York, NY 10039

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X Index No.
RONALD RIVAS,

Plaintiff,

-against-

COMPLAINT

POLICE OFFICER KENYATTA BROWN
(Shield # 20409; Tax #: 933657), POLICE OFFICER
KRUNAL PANDHI (Shield # 30175 Tax #: 954208)
and POLICE OFFICER GERALD DIAZ (Shield # 3067;
Tax # 949858),

Defendants.

-----X
RONALD RIVAS (hereinafter "plaintiff"), by his attorney(s) THE LAW OFFICES OF
WALE MOSAKU, P.C., complaining of the defendants POLICE OFFICER
KENYATTA BROWN (Shield # 20409; Tax #: 933657), POLICE OFFICER KRUNAL
PANDHI (Shield # 30175; Tax #: 954208) and POLICE OFFICER GERALD DIAZ
(Shield # 3067; Tax # 949858) (collectively referred to as "the defendants"), upon
information and well founded belief, alleges as follows:NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom; and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States; and by Title 42 U.S.C. §§ 1982, 1983 and 1985; and arising under the laws and statutes of the City and/or State of New York.

THE PARTIES

2. The plaintiff is a resident of the City of New York, who resides in Kings County, City and State of New York. Plaintiff is a Hispanic-American male of full age.

3. At all relevant times the defendants, upon information and belief, were and still are law enforcement officers in the employ of the police department of the City of New York (hereinafter "NYPD").
4. At all times herein, the defendants were employed as law enforcement officers of the City of New York, State of New York, and were acting under the color of their official capacity, and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York.
5. At all relevant times, the City of New York was/is a municipal corporation of the State of New York, and was/is the employer of the defendants, through its Police Department, specifically the NYPD, and the actions of the defendants complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.
6. The plaintiff sues the defendants in their individual and official capacities.

FACTUAL ALLEGATIONS

7. On or about June 12, 2016 at approximately 12:00 p.m., on the sidewalk in front of the premises described as 1865 Fulton Street, Brooklyn, New York 11233 in Brooklyn, New York (subject location), the plaintiff was falsely arrested without probable cause by the defendants, and thereafter assaulted and battered without probable cause by the defendants.
8. Prior to the time of the incident, the plaintiff's ex-girlfriend had gone to the plaintiff's resident building. The plaintiff's ex-girlfriend was not supposed to have gone to the plaintiff's resident building because the plaintiff's mother had obtained an Order of Protection against said ex-girlfriend.
9. Upon arrival at the subject location, the plaintiff's ex-girlfriend accosted and attacked the plaintiff by pulling on his hair.
10. As a result, the plaintiff dialed 911 and reported what was going on.

11. In response to the plaintiff's 911 call, defendant Brown arrived at the subject location. At the time defendant Brown arrived, the plaintiff's ex-girlfriend was walking away from the subject location, and the plaintiff immediately alerted defendant Brown to that fact. However, astonishingly, defendant Brown immediately arrested the plaintiff and placed him in handcuffs.
12. After placing the plaintiff in handcuffs, defendant Brown walked the plaintiff to his squad car and directed the plaintiff to enter into the rear seat. However, the plaintiff was unable to do so because said rear seat was wholly obstructed by the front seat which had been reclined back.
13. Rather than have the front seat of the squad vehicle pulled back upright, defendant Brown attempted to force the plaintiff into the rear seat that was obstructed by the front seat.
14. When the plaintiff was unable to, defendant Brown then maliciously tripped the plaintiff, who at the time was handcuffed with his hands behind his back, causing the plaintiff to fall to the ground and injure his left middle finger, which was bleeding from a cut.
15. The plaintiff, who could not get up from the ground himself because of the fact that he was handcuffed with his hand behind his back, was left lying on the ground by defendant Brown.
16. An ambulance arrived at the scene in order to treat the plaintiff's injury, and the ambulance personnel then lifted the plaintiff off the ground.
17. As the plaintiff was being placed in another squad vehicle, his mother handed him a copy of the order of protection that had been issued for her benefit against the plaintiff's ex-girlfriend.
18. It was at that juncture that defendants Diaz and Pandhi forcefully attempted to retrieve the copy of said order of protection from the plaintiff, and when the plaintiff protested, manhandled the plaintiff

and pulled his right thumb back so violently that the plaintiff literally heard his thumb pop.

19. At that juncture the plaintiff, who was brought to tears, requested that he be taken to the hospital, and was transported to Interfaith Hospital by defendants Diaz and Pandhi.
20. Prior to being taken to the hospital, the defendants Diaz and Pandhi secured the handcuffs to the plaintiff's wrists so tightly as to cause him to sustain lacerations and bruising to both wrists.
21. At Interfaith Hospital, the plaintiff was diagnosed with, *inter alia*, a dislocated right thumb, and a sprained right wrist.
22. He was treated, splinted, and discharged to the custody of defendants Diaz and Pandhi.
23. After the plaintiff was discharged from Interfaith Hospital, he was transported to Police Service Area (PSA) 3 located at 25 Central Avenue, Brooklyn, New York 11206, where he was photographed and fingerprinted.
24. The plaintiff was then transported to Central Booking, situated within the New York City Criminal Courthouse located at 120 Schermerhorn Street, Brooklyn, New York 11201.
25. At approximately 04:00 a.m. on June 13, 2016, the plaintiff was released from Central Booking without charge after the Kings County District Attorney declined to prosecute him.
26. The plaintiff's arrest number was "K16643418".

CAUSE(S) OF ACTION: FALSE ARREST AND FALSE IMPRISONMENT UNDER
42 U.S.C § 1983/NEW YORK STATE LAW

27. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 26 of this complaint as though fully set forth herein.
28. The above-described respective arrest, detention and imprisonment of the plaintiff were without just or probable cause and without any

warrant or legal process directing or authorizing the plaintiff's arrest or subsequent detention.

29. As a result of plaintiff's above-described false arrest and detention, he has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.
30. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendant officers, individually and severally.

CAUSE OF ACTION: EXCESSIVE FORCE UNDER 42 U.S.C § 1983

31. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 30 of this complaint as though fully set forth herein.
32. The level of force employed by the defendant officers was objectively unreasonable and in violation of the plaintiff's constitutional rights.
33. As a result of the aforementioned conduct of the defendant officers, the plaintiff was subjected to excessive force, resulting in serious, severe, and permanent physical injuries.

CAUSE OF ACTION: FAILURE TO INTERVENE UNDER 42 U.S.C § 1983

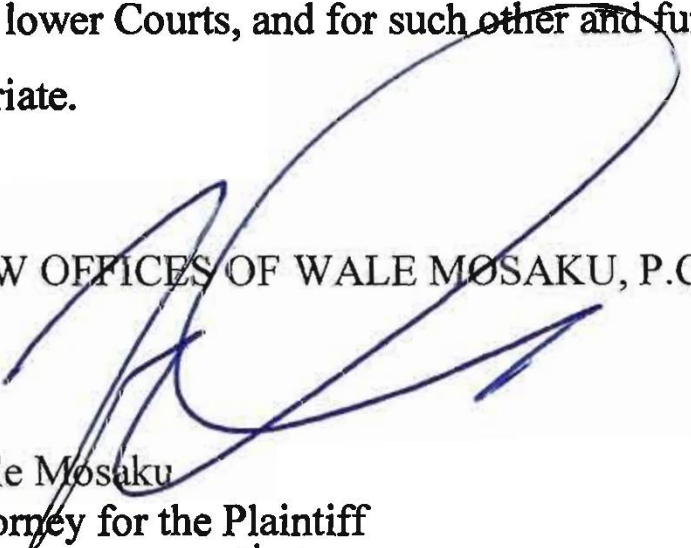
34. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 33 of this complaint as though fully set forth herein.
35. Each defendant officer had an affirmative duty to intervene on the plaintiff's behalf to prevent the violation to his constitutional rights, as more fully set forth above.
36. Each defendant officer failed to intervene on the plaintiff's behalf to prevent the violation of his constitutional rights, despite having had a realistic and reasonable opportunity to do so.

37. As a consequence of each defendant officer's actions, plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and his constitutional rights were violated. Plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against each of the defendants, individually and severally.

WHEREFORE, plaintiff prays for judgment against the defendants, individually and severally, as follows: for compensatory damages against each defendant in an amount to be proven at trial; for exemplary and punitive damages against each defendant in an amount to be proven at trial; for costs and expenses of suit herein, including plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
November 14, 2018

LAW OFFICES OF WALE MOSAKU, P.C.

By: 

Wale Mosaku
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index #:
RONALD RIVAS,

Plaintiff,

-against-

ATTORNEY
CERTIFICATION
PURSUANT TO 22 NYCRR
Part 130-1.1(c)

POLICE OFFICER KENYATTA BROWN
(Shield # 20409; Tax #: 933657), POLICE OFFICER
KRUNAL PANDHI (Shield # 30175; Tax #: 954208)
and POLICE OFFICER GERALD DIAZ (Shield # 3067;
Tax # 949858),

Defendants.

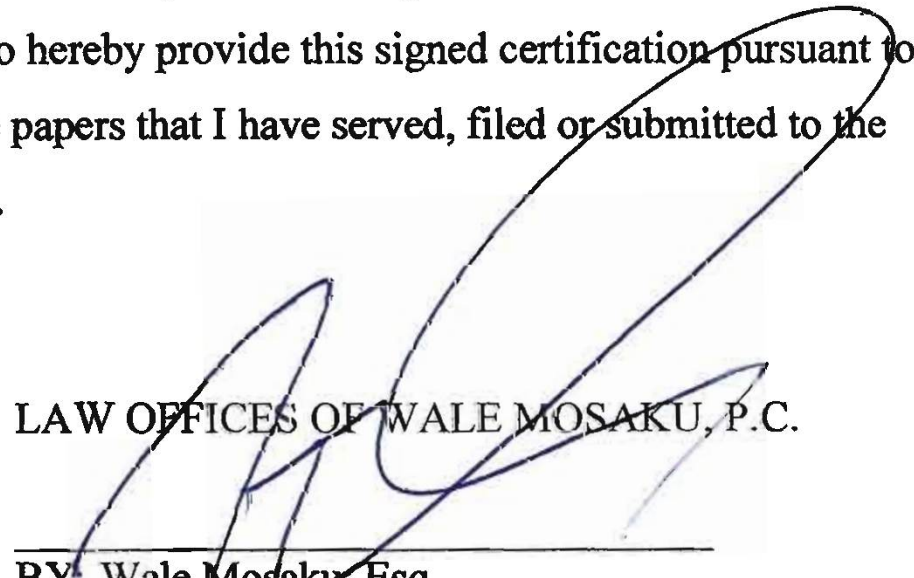
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The undersigned attorney does hereby certify:

That I am the attorney for the plaintiff and duly admitted to practice law before the
Courts of the State of New York. I do hereby provide this signed certification pursuant to
22 NYCRR Part 130-1.1 (c), that the papers that I have served, filed or submitted to the
Court in this action are not frivolous.

Dated: Brooklyn, New York
November 14, 2018

LAW OFFICES OF WALE MOSAKU, P.C.

BY:  Esq.
Attorney(s) for Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS Index No.

RONALD RIVAS,

Plaintiff(s),

-against-

POLICE OFFICER KENYATTA BROWN (Shield # 20409; Tax #: 933657), POLICE OFFICER KRUNAL PANDHI (Shield # 30175; Tax #: 954208) and POLICE OFFICER GERALD DIAZ (Shield # 3067; Tax # 949858),

Defendant(s).

SUMMONS AND COMPLAINT

LAW OFFICES OF WALE MOSAKU, P.C.
Attorney(s) for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

To:

Service of a copy of the within
is hereby admitted.

Dated:..... 201_

Attorney(s) for Defendant(s)